

sonal estate settled for her benefit upon the occasion of her *marriage* is excepted from the foregoing powers (c); and an appointment after the date of the Act, but in execution of a power created by a settlement of a previous date, is not within the Act (d). And as the interest must be created by an *instrument*, a share of a feme covert as next of kin under an intestacy is not within the Act.

[By an assignment under this statute the wife can transfer her future property discharged from her husband's right as fully and effectually as if she were a feme sole, and the assignment does not operate as that of the husband and wife according to their respective interests (e). The concurrence of the husband will therefore be good, although there may be a right of retainer as against him (f), or although he may have previously executed a creditor's deed or been adjudicated a bankrupt (g).]

Whether the act applies to choses en action in possession.

— It will be observed that the statutory power of disposition given by Malins's Act to a feme covert extends in terms no further than to her *future* or *reversionary* interests not limited to her by her marriage settlement; and as to *choses en action in possession*, the feme covert, though enabled to waive her equity to a settlement, has no express power of absolute disposition given her. If *therefore a feme [*24] covert be entitled to a *chose en action* in possession, and join with her husband in assigning it to a trustee, then if it be not reduced into possession during the coverture, and the wife survives, the question arises whether, though the formalities prescribed in the Act were complied with, she may not claim the fund by survivorship. The meaning of the framer of the Act probably was, that, as to *choses en action* to which a feme covert is entitled *in possession*, the husband can compel a transfer of them to himself, subject only to the wife's equity to a settlement, and as the Act

(c) See a case with reference to this section, *Clarke v. Green*, 2 H. & M. 474.

(d) *Re Butler's Trusts*, 3 Ir. Rep. Eq. 138.

[(e) *Re Batchelor*, 16 L. R. Eq. 481.]

[(f) *Re Batchelor, ubi sup.*]

[(g) *Re Jakeman's Trusts*, 23 Ch. D. 344; *Cooper v. Macdonald*, 7 Ch. D. 288.]